



CHAPTER – 1

THE RIGHT TO FOOD AS AN ENFORCEABLE ENTITLEMENT: INTERNATIONAL NORMS, CONSTITUTIONAL PRACTICE, AND STRUCTURAL CHALLENGES

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Abstract

Persistent hunger in a world of agricultural abundance reveals structural failures of governance, distribution, and accountability rather than mere deficits in food production. This chapter critically examines the evolution of the right to food as a legal and normative framework for addressing these failures, tracing its development from foundational international human rights instruments to contemporary treaty obligations, constitutional protections, and judicial interpretation. Using doctrinal analysis and comparative constitutional inquiry, the chapter analyzes the tripartite state obligations to respect, protect, and fulfill the right to food, while evaluating how courts in different jurisdictions have transformed these obligations into enforceable socio-economic entitlements. The chapter further situates food rights within broader structural constraints, examining how trade liberalization, corporate concentration, inequality, and climate disruptions challenge the realization of rights-based food governance. It argues that while the right to food has gained increasing normative and constitutional recognition, implementation deficits persist due to tensions between legal commitments and political-economic structures. To address this gap, the chapter develops a five-pillar food justice framework integrating legal enforceability, participatory governance, political-economic reform, corporate accountability, and ecological sustainability. By bridging human rights law with contemporary food sovereignty and justice scholarship, the chapter contributes a multidimensional framework for rethinking the right to food beyond food security discourse toward transformative and equitable food system governance.

Keywords: Right To Food, Food Justice, Constitutional Socioeconomic Rights, Food Sovereignty, Trade Liberalization

1. Introduction: Hunger as a Rights Problem

When scholars and policymakers speak of global hunger, the frame they choose determines the solutions they imagine. A production-deficit frame leads naturally to biotechnology, precision agriculture, and supply-chain optimization. A market-failure frame points toward price stabilization, trade reform, and investment in rural



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Hearty Congratulations to **Mr. Mohamed Harees M** and **Ms. Surya Prabha R**

under the guidance of

Dr. R. Venkatesan, M.Tech., Ph.D.

Associate Professor

for successfully publishing a book chapter titled

**"The Right to Food as an Enforceable Entitlement: International Norms,
Constitutional Practice, and Structural Challenges"**

in the international edited book

**"Globalization, Food Systems, and Legal Responses: Governance,
Justice, and Sustainability in a Changing World"**



E-ISBN: 978-81-685212-2-3



DOI: 10.69889/IMBS.978-81-685212-2-3



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We appreciate your outstanding research contribution and
wish you continued success in your academic endeavors.



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